

22STCV22678 22STCV22678

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV22678 Hearing Date: June 24, 2026 Dept: 617

Dept.

617

Date:

6-24-26

Case

#: 22STCV22678

Trial

Date: N/A

QUASH SUBPOENA

MOVING

PARTY: Defendant, Gabriel René and Third Party Mariam Saffarian

RESPONDING

PARTY: Unopposed/Plaintiff, David Thomson

RELIEF

REQUESTED

Motion

to Quash Subpoena Directed to Judgment Debtor and Third Party

SUMMARY

OF ACTION

Plaintiff

David Thomson filed a complaint against Defendants Verses Technologies USA, Inc., Cyberlab, LLC, Daniel Mapes, and Gabriel René for: (1) Unregistered Sale of Securities; (2) Violation of Section 25401 Of California Corporations Code; (3) Violation of Sections 45001 and 25504 of the California Corporations Code; (4) Breach of Contract; (5) Breach of the Covenant of Good Faith And Fair Dealing; and (6) Unjust Enrichment. On March 30, 2023, the Court granted Defendants' motion to compel arbitration. On May 17, 2024, an arbitrator found in favor of Plaintiff and awarded \$9,921,298.24. The Court confirmed the arbitration award on April 29, 2025. On May 28, 2025, the Court entered judgment, permitting Plaintiff to "recover his ongoing attorney's fees and expenses incurred after the 5/17/2024 Award, as may be determined by this Court in the future, until this Judgment is fully paid, and that any such award of attorney's fees and expenses shall be jointly and severally against each Defendant." The Court granted Plaintiff's motion for attorneys' fees on April

21, 2026.

RULING: Granted in part.

Defendant

Gabriel René and his spouse, Mariam Saffarian, move to quash and limit the subpoenas served on them by Plaintiff. They argue that the subpoenas are overly broad, request documents not within their possession, custody, and control, and seek privileged tax records as well as documents for unreachable trust property. Plaintiff does not oppose the motion. René and Saffarian's motion is granted in part.

A

judgment debtor examination enables a judgment creditor to “obtain an order requiring the judgment debtor to appear before the court, or a court-appointed referee, to furnish information that will aid in the enforcement of the money judgment.” (Lee v. Swansboro Country Property Owners Assn. (2007) 151 Cal.App.4th 575, 581; Code Civ. Proc., § 708.110, subd. (a).) “At the examination, the judgment creditor has the opportunity to inquire of the judgment debtor regarding the property the debtor has, or may acquire in the future, that may be available to satisfy the judgment.” (Lee, supra, 151 Cal.App.4th at p. 581.) The judgment creditor may also examine a third party that may have “possession or control of property in which the judgment debtor

has an interest or is indebted to the judgment debtor in an amount exceeding two hundred fifty dollars (\$250)” (Code Civ. Proc., § 708.120, subd.

(a).) “A judgment debtor examination is intended to allow the judgment creditor a wide scope of inquiry concerning property and business affairs of the judgment debtor.” (Lee, *supra*, 151 Cal.App.4th at p. 581.)

An

examination may be conducted with a subpoena of documents. (Lee, *supra*, 151 Cal.App.4th at p. 582.) “If a subpoena requires the . . . production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by [a party] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).)

René

and Saffarian first contend that the subpoenas are overly broad in that they seek documents from the past 5 years. Given the “wide scope” of inquiry afforded to

judgment creditors regarding the judgment debtor's property, the Court declines to categorically limit the subpoenas in this regard. Rather, the Court opts to limit the subpoenas in accordance with specific objections to certain requests.

The Court therefore addresses each of René and Saffarian's particular objections in turn.

René

and Saffarian argue that the subpoenas seek documents not within their possession, custody, and control because they require them to create documents that do not exist and to produce documents that are in the possession of Verses Technologies and other entities. The Court agrees. Subpoenas may be directed to documents and electronically stored information "under the witness's control."

(Code Civ. Proc., § 1985, subd. (a).) René and Saffarian represent that documents such as inventories of personal property, lists of wages and commissions, and lists of all monies from an estate or inheritance do not exist. [René Decl. ¶ 3; Saffarian Decl. ¶ 3.] They also state that they do not have possession or control or the right to access documents from Verses Technologies or its affiliates. [René Decl. ¶ 3(i); Saffarian Decl. ¶ 3(i).]

This includes René's stock, which he is unable to access or transfer without some form of legal process. [René Decl. ¶ 5.] The subpoena is thus limited to the extent it seeks documents not in the possession or control of the subpoenaed

parties.

René

and Saffarian next object that the subpoenas require production of privileged tax records and documents concerning Saffarian's interest in unreachable trust property. These objections have merit. There is a privilege against disclosing tax returns. (*Li v. Yan* (2016) 247 Cal.App.4th 56, 66.) The privilege "will not be upheld" when: "(1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the lawsuit is inconsistent with the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved." (*Id.* at p. 67.) There is no indication that any of these exceptions apply here. The subpoenaed parties thus cannot be compelled to produce their tax returns. Saffarian's interest in trust property cannot be reached because the trust was established by her mother before Saffarian's marriage and there has been no transmutation. [Saffarian Decl. ¶ 4.] (*See Steinhart v. County of Los Angeles* (2010) 47 Cal.4th 1298, 1319 ["Under general principles of trust law, trust beneficiaries hold 'the equitable estate or beneficial interest in' property held in trust and are 'regarded as the real owner[s] of [that] property'"].) Saffarian therefore cannot be required to produce a copy of the trust. Plaintiff's subpoena is therefore limited to the extent it seeks tax returns and a copy of

the trust for which Saffarian is a named beneficiary.

The

unopposed motion is therefore granted in part and Plaintiff's subpoena is

limited in accordance with this order.

René

and Saffarian to give notice.